

25STCV18541 25STCV18541

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Case Number: 25STCV18541 Hearing Date: July 21, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

DENAI BLACKSHIRE,

Plaintiff,

vs.

FCA US LLC, ET. AL.,

Defendants.

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CASE NO.: 25STCV18541

[TENTATIVE] ORDER DENYING MOTION TO
COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE §
871.26 AND REQUEST FOR MONETARY SANCTIONS

Dept. 506

8:30 a.m.

July 21, 2026

BACKGROUND

On June

26, 2025, Plaintiff Denai Blackshire ("Plaintiff") filed this Song-Beverly action against Defendants FCA US LLC ("FCA"), Santa Monica Chrysler Jeep Dodge Ram, and Does 1 through 10, inclusive ("Defendants"). On or about September 6, 2020, Plaintiff entered into a warranty contract with FCA regarding a 2020 Jeep Wrangler ("Vehicle") which was manufactured or distributed by FCA. (Compl., ¶ 7.) Defects and nonconformities manifested themselves within the applicable express warranty period, substantially impairing the use, value, or safety of the Vehicle and rendering the value of the Vehicle worthless and/or de minimis. (Id. at ¶¶ 12-14.) Plaintiff's Complaint alleges six causes of action for (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement Concealment.

On

June 22, 2026, Plaintiff filed this Motion to Compel Initial Disclosures and Request for Monetary Sanction against FCA.

On

July 8, 2026, FCA filed an opposition.

No

reply has been filed.

LEGAL

STANDARD

“Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Civ. Proc. Code, § 871.26, subd. (b).) “The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): ... (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins (“TSBs”)¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle... (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle....” (Id. at § 871.26, subd. (h).)

“Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to

comply with the document production requirements as prescribed in subdivision (b).

(2) A

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)."

(Id. at § 871.26, subd. (j).)

DISCUSSION

Plaintiff moves for an order compelling FCA to produce all documents required under section 871.26(h)(6)-(10) and (12)-(13) and imposing mandatory sanctions against FCA and its counsel in the amount of \$2,500.

A. Initial

Disclosures

Plaintiff argues that FCA has not provided written responses accompanied by verifications of defense counsel as required by Civil Code of Procedure section 016.090(a)(5). Plaintiff contends that complying with section 871.26(h) does not require a complex or burdensome search as FCA need only search the VIN number in its own warranty database and dealer-facing systems. Plaintiff argues that FCA has not produced the Complete DealerCONNECT report for the Vehicle and has only produced selected repair orders and some warranty information. Plaintiff also argues that unverified complaint claims and AutoPay claims must be produced. Furthermore, Plaintiff argues that FCA must conduct a separate, independent search of all warranty claims paid under both the 85-41-XX-XX prefix and the 08-19-XX-40 series for the subject VIN. Additionally, while FCA produced some Technical Service Bulletins (TSBs), it has produced no Informational Service Bulletins (ISBs). Moreover, without verification, Plaintiff contends Plaintiff cannot independently confirm that FCA has produced all TSBs applicable to the Vehicle. Next, Plaintiff contends that FCA has not produced service manuals for all systems reasonably related to the alleged nonconformities. Plaintiff argues that the information FCA has not produced from its Warranty

System/DealerCONNECT is directly relevant to the reasonable number of repair attempts and willfulness for civil penalties.

In opposition, FCA argues that nothing in section 871.26 requires a manufacturer to serve written responses, verifications, sworn statements, or a certification of search completeness. Rather, the statute requires production of enumerated categories of documents and information. FCA argues that Plaintiff incorrectly attempts to import a verification requirement from Code of Civil Procedure section 2016.090(a)(5) when section 871.26 is a distinct statutory scheme. Furthermore, FCA contends that section 871.26 establishes limited early disclosure procedures for Song-Beverly cases to occur prior to the expense of full discovery. FCA argues that the disclosures do not require a statement of compliance, search terms, or to produce every document that may be searchable by VIN in every internal system. FCA argues that Plaintiff seeks to expand section 871.26 beyond its text to authorize broad discovery. Plaintiff may pursue discovery at the appropriate time. Moreover, FCA already produced the documents required by 871.26. FCA contends Plaintiff has not shown that a required statutory category was not produced. Instead, Plaintiff has claimed that production is incomplete. Plaintiff's request expands beyond the purpose and text of section 871.26.

Here, the Court agrees with FCA that Plaintiff has incorrectly claimed that section 871.26 requires a manufacturer to serve written responses, verifications, sworn statements, or a certification of search completeness. Nowhere in section 871.26 requires written responses or verifications. Instead, it states: "Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Civ. Proc. Code, § 871.26, subd. (b).) Plaintiff has incorrectly conflated section 871.26 disclosures with initial disclosures under section 2016.090(a)(5). Thus, Plaintiff's argument that FCA has failed to provide verified disclosures is inapplicable.

Moreover, Plaintiff does not contend that FCA failed to serve initial disclosure production in its entirety. Instead, Plaintiff argues that the initial disclosures are incomplete. FCA has served its initial disclosures which included repair records, warranty claims records, the repair order detail report, vehicle information records sales documents, service contract reports, Customer Assistance Inquiry records, the

Monroney label, TSBs, the service manual, and recall-related materials, among other documents, as required by section 871.26(h). (Opposition, p. 4.)

Plaintiff admits to having received document disclosures of the service manual and TSBs. (Motion, p. 12.) As section 871.26 does not require verification, FCA was not required to have verified that all records have been produced. Thus, the Court finds that FCA complied with its initial disclosure obligations for these categories. To the extent that Plaintiff seeks further or additional information, Plaintiff should do so through other discovery methods such as interrogatories or requests for production.

Accordingly, the motion to compel is denied.

B. Sanctions

Plaintiff requests sanctions for \$2,500. In opposition, FCA argues that sanctions should be denied because FCA served a timely initial production, produced categories of documents required by section 871.26, and responded to Plaintiff's meet and confer. Plaintiff's motion rests on disputed legal interpretations and demand beyond section 871.26.

Since the Court finds FCA to have complied with section 871.26 by serving the required documents in their initial disclosures, the Court denies Plaintiff's request for sanctions.

CONCLUSION

Accordingly, the motion to compel initial disclosures and request for monetary sanctions are DENIED.

Moving party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on

calendar.

Dated this 21st day of July 2026

Hon. Thomas D.

Long

Judge of the Superior

Court